3722-A

Executive Order

CONCERNING A SALE TO BE CONDUCTED BY THE ALIEN PROPERTY CUSTODIAN PURSUANT TO THE "TRADING WITH THE ENEMY ACT" AND AMENDMENTS THEREOF.

By virtue of the authority vested in me by an "Act to define, regulate and punish trading with the enemy, and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919 and prior fiscal years on account of war expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, without public or other advertisement, at such time and place as to him, or to his authorized agent, may seem advisable, that certain property hereinafter described, now being held and administered by him as such Alien Property Custodian and heretofore upon requirement and demand conveyed, transferred, assigned and delivered to him as the property of the following persons, namely: Paul Arnold, Albert Huffmann, Alma Forstmann, Ferdinand Herman Arnold, Max Koswig, Friedrich Kick, and Joh. Wilh. Scheidt, which said persons, he did, after investigation, determine to be enemies within the purview of said Act as amended, which property is described as follows, to wit:—2960 shares of the common capital stock of Forstmann & Huffmann Company, a corporation having its principal place of business in the City of Passaic, State of New Jersey.

My reasons for the foregoing determination, order, rule and regulation are:

(a) That the property described is not customarily sold and cannot usually be sold to advantage either at public sale after public or other advertisement, or at the place where said property or the greater portion thereof, is situated.

(b) That those who were the owners of said property at the time of the capture thereof by the Alien Property Custodian, have consented to the sale of said property by the Alien Property Custodian.

(c) That expense will be avoided in the further administration of said property by the Alien Property Custodian.

WARREN G HARDING

THE WHITE HOUSE,
August 12, 1922.

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